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UNITED STATES POSTAL SERVICE

March 17, 2005

EXECUTIVE COMMITTEE

SUBJECT: Disagreement Between the Equal Employment Opportunity Commission and the Merit Systems Protection Board

This is to inform you about a significant disagreement between the Equal Employment Opportunity Commission (EEOC) and the Merit Systems Protection Board (MSPB) concerning the outcome in a Postal Service case. The MSPB has taken the extremely rare action of certifying its disagreement with the EEOC to a special panel, which by law is convened to resolve disputes between the MSPB and EEOC. The special panel is convened when the MSPB finds that an EEOC decision has misapplied or misconstrued the law. This is only the third time that we know of in which the MSPB has certified a matter to the special panel. The panel consists of three members: one appointed by the MPSB, one appointed by the EEOC, and third member is the chair, who is Presidentially appointed with the advice and consent of the Senate.

In the case in question, *Boots v. United States Postal Service*, the MSPB held that the Postal Service acted correctly in disqualifying Mr. Boots from a position as a tractor trailer operator because he was taking anti-seizure medication. Department of Transportation (DOT) regulations provide that taking such medication prevents drivers from operating certain vehicles. While the DOT rules do not apply to the USPS, the Postal Service has voluntarily adopted them.

The EEOC ruled that the Postal Service engaged in disability discrimination against Mr. Boots when the Postal Service invoked the DOT regulations in deciding that he was not fit to drive tractor trailers. The Commission found that the Postal Service should have performed an individual inquiry into Mr. Boots' actual ability to drive trucks safely, rather than relying upon the across-the-board prohibition in the DOT regulations.

Our brief to the special panel is due on March 25. We will keep you advised of all developments.

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Robert E. Boots v. United States Postal Service
03A40060
December 13, 2004

Robert E. Boots,
Petitioner,

v.

John E. Potter,
Postmaster General,
United States Postal Service,
Agency.

Petition No. 03A40060

MSPB No. AT-0752-03-0286-I-1

DECISION

On February 23, 2004, petitioner timely filed a petition with the Equal Employment Opportunity Commission (EEOC or Commission) asking for review of a Final Order issued by the Merit Systems Protection Board (MSPB) concerning his claim of discrimination in violation of Section 501 of the Rehabilitation Act of 1973, as amended, 29 U.S.C. § 791, et seq. Petitioner, formerly a Tractor-Trailer Operator, PS-7, at the agency's West Palm Beach, Florida Processing and Distribution Center, alleged that he was discriminated against on the basis of disability (seizure disorder<1>) when he was removed from employment effective December 21, 2002.

On January 13, 2003, petitioner filed a mixed case appeal with the MSPB. Petitioner waived his right to a hearing. After review of the record, the MSPB Administrative Judge (AJ) upheld petitioner's removal, finding in relevant part that the agency had not discriminated against petitioner on the basis of disability. On January 22, 2004, the Board denied petitioner's petition for review.

The salient facts of the case are as follows: In 1995, the agency voluntarily adopted regulations promulgated by the Department of Transportation (DOT) pertaining to the operation of commercial motor vehicles.<2> The regulations provide, in relevant part, that an individual is qualified to operate a motor vehicle in excess of 10,000 pounds in interstate commerce if he or she "has no established medical history or clinical diagnosis of epilepsy or any other condition which is likely to cause loss of consciousness or any loss of ability to control a commercial motor vehicle." 49 C.F.R. § 391.41(b)(8). The accompanying medical advisory to this section recommends that an individual who has had a non-epileptic seizure should be evaluated "on an individual basis," although it further recommends disqualification of an individual who is currently taking anti-seizure medication. Medical Advisory Criteria for Evaluation Under 49 C.F.R. Part 391.41, § 391.41(b)(8) (2002). Concurrent with its adoption of the DOT regulations, the agency instituted the requirement that all holders of commercial driver's licenses (CDLs) undergo periodic medical evaluations to ensure compliance with the

DOT regulations.

Petitioner began his employment with the agency in 1998. At the time he was hired, petitioner disclosed that he had been diagnosed with seizure disorder for which he took anti-seizure medication.<3> To occupy the position of Tractor-Trailer Operator, petitioner was required to hold a valid CDL. When he was hired by the agency, petitioner was in possession of a valid CDL issued by the State of Florida, and had worked as a Tractor-Trailer Operator for ten years without any difficulties. Petitioner's CDL was renewed on February 6, 2001 with an expiration date of April 5, 2007.

Petitioner underwent a periodic medical evaluation conducted by the agency's contract physician, who on July 8, 2002 advised the agency that petitioner was not qualified to operate a commercial motor vehicle under the DOT regulations because of his use of anti-seizure medication. The agency's medical officer concurred in this assessment. However, the medical officer expressed reservations as to whether, in view of petitioner's problem-free history, it was actually necessary to remove him from his Tractor-Trailer Operator position.<4> On July 9, 2002, petitioner's personal physician found that petitioner was qualified to operate a commercial motor vehicle, and signed the necessary medical certificate.<5>

On August 23, 2002, the agency proposed to reassign petitioner to the Mailhandler craft, but did not offer him a specific position. Rather, petitioner was advised to apply for a Mailhandler position "while the vacancies still exist." It appears that petitioner was subsequently offered a Mailhandler position, but declined the offer. However, the record contains no copy of an actual job offer.

On November 15, 2002, the agency proposed petitioner's removal on the ground that he was unable to perform the duties of his Tractor-Trailer Operator position. On December 20, 2002, the agency issued petitioner a Notice of Removal, effective December 21, 2002. The agency noted that DOT had revised its regulations in 2000 to disqualify individuals who take anti-seizure medication from holding CDLs.<6> The agency stated that petitioner had been offered, and declined, a Mailhandler position, and that no other positions were available.

In his April 29, 2003 decision, the MSPB AJ upheld petitioner's removal. The AJ assumed that petitioner's medical condition constituted an actual or perceived disability. The AJ then found that petitioner was not a "qualified individual with a disability" because he could not meet the qualification standard for the Tractor-Trailer Operator position, and therefore could not perform the essential functions of his position with or without reasonable accommodation. The AJ noted that the agency had offered petitioner reassignment as a Mailhandler, which offer petitioner had rejected. The Board denied petitioner's petition for review of the AJ's decision.

EEOC regulations provide that the Commission has jurisdiction over mixed case appeals on which the MSPB has issued a decision that makes determinations on allegations of discrimination. 29 C.F.R. § 1614.303 et seq. The Commission must determine whether the decision of the MSPB with respect to the allegation of discrimination constitutes a correct interpretation of any applicable law, rule, regulation or policy directive, and is supported by the evidence in the record as a whole. 29 C.F.R. § 1614.305(c).

The Commission finds that the decision of the MSPB does not constitute a correct interpretation of applicable laws, rules, regulations, and policy directives, and is not supported by the evidence of record as a whole. The Commission therefore DIFFERS with the decision of the MSPB.

In order to establish a disability discrimination claim under the Rehabilitation Act, an individual must demonstrate that he or she: (1) is an "individual with a disability"; (2) is "qualified" for the position held or desired, i.e., can perform the essential functions of the position with or without accommodation; and (3) was subjected to an adverse employment action because of the disability. See Swanks v. WMATA, 179 F.3d 929, 934 (D.C.Cir. 1999); Heyman v. Queens Village Committee for Mental Health for Jamaica Community Adolescent Program, 198 F.3d 68 (2d Cir. 1999).
Petitioner has a diagnosis of seizure disorder, for which he takes anti-seizure medication. The agency, being aware of these facts, would not permit petitioner to operate a commercial motor vehicle, i.e., to work in a class of jobs. By virtue of the foregoing, the evidence of record demonstrates that petitioner is an "individual with a disability" within the meaning of the Rehabilitation Act. See 29 C.F.R. §§ 1630.2(g), 1630.2(m). Petitioner, however, must also establish that he is a "qualified individual with a disability." It is undisputed that petitioner had safely operated tractor-trailers for at least 15 years at the time of his removal. It is further undisputed that the agency relied solely upon the DOT regulation in removing petitioner from his position as a Tractor-Trailer Operator.

An employer may require, as a qualification standard, that an individual not pose a direct threat. A "direct threat" is defined as a "significant risk of substantial harm" that cannot be eliminated or reduced by reasonable accommodation. 29 C.F.R. § 1630.2(r). The agency has the burden of proof regarding whether there is a significant risk of substantial harm. See Massengill v. Department of Veterans Affairs, EEOC Appeal No. 01964890 (July 14, 2000). A determination as to whether an individual poses such a risk cannot be based on an employer's subjective evaluation or, except in cases of the most apparent nature, merely on medical reports. See Selix v. United States Postal Service, EEOC Appeal No. 01970153 (March 16, 2000). Rather, after identifying the risk, the employer must conduct an individualized assessment of the individual that takes into account: (1) the duration of the risk; (2) the nature and severity of the potential harm; (3) the likelihood that the potential harm will occur; and (4) the imminence of the potential harm. 29 C.F.R. § 1630.2(r). This assessment must be based on objective evidence, not subjective perceptions, irrational fears, patronizing attitudes, or stereotypes about the nature or effects of a particular disability or of disability generally. Relevant evidence may include input from the individual with a disability, his work history or experiences in previous positions, and opinions of medical doctors who have expertise in the particular disability or direct knowledge of the individual with a disability. If it is determined that an individual does pose a direct threat because of his or her disability, the employer must determine whether a reasonable accommodation would eliminate the risk of harm or reduce it to an acceptable level.

The Commission finds that the agency failed to conduct an individualized assessment of petitioner. Rather, the agency, solely in reliance on a DOT regulation which it is not required to observe, deemed petitioner disqualified from holding a CDL and removed him from his position as a

Tractor-Trailer Operator without regard to the fact that petitioner had been seizure-free and operating a tractor-trailer successfully and safely for at least 15 years. It is noted that the Supreme Court's ruling in Albertsons, Inc. v. Kirkingburg, 527 U.S. 555 (1999), is inapposite to the case at bar. The employer in that case was required to abide by the DOT regulations regarding operation of commercial vehicles. By contrast, the agency is specifically exempt from the DOT regulations, and observes the regulations on a strictly voluntary basis. In this regard, the MSPB AJ erred in finding that the regulations were mandatory upon the agency. The agency therefore should have conducted an individualized assessment of petitioner rather than relying on the mere existence of the DOT regulation.<7>

Accordingly, the Commission concludes that, as a result of its failure to conduct an individualized assessment of petitioner, the agency did not meet its burden of proof with regard to whether petitioner posed a significant risk of substantial harm. Consequently, the Commission finds that the agency discriminated against petitioner on the basis of his disability when it removed him from employment as a Tractor-Trailer Operator. Therefore, based upon a thorough review of the record and for the foregoing reasons, it is the decision of the Commission to DIFFER with the final decision of the MSPB finding no discrimination.

PETITIONER'S RIGHT TO FILE A CIVIL ACTION (V0900)

Your case is being referred back to the Merit Systems Protection Board for further consideration and the issuance of a new decision. You will have the right to file a civil action in the appropriate United States District Court, based on the new decision of the Board:

1. Within thirty (30) calendar days of the date that you receive notice of the decision of the Board to concur in this decision of the Commission; or,

2. If the Board decides to reaffirm its original decision, within thirty (30) calendar days of the date you receive notice of the final decision of the Special Panel to which your case will then be referred.

You may also file a civil action if you have not received a final decision from either the Merit Systems Protection Board or the Special Panel within one hundred and eighty (180) days of the date you filed this Petition for Review with the Commission. If you file a civil action, you must name as the defendant in the complaint the person who is the official agency head or department head, identifying that person by his or her full name and official title. Failure to do so may result in the dismissal of your case in court. "Agency" or "department" means the national organization, and not the local office, facility or department in which you work.

RIGHT TO REQUEST COUNSEL (Z1199)

If you decide to file a civil action, and if you do not have or cannot afford the services of an attorney, you may request that the Court appoint an attorney to represent you and that the Court permit you to file the action without payment of fees, costs, or other security. See Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e et seq.; the Rehabilitation Act of 1973, as amended, 29 U.S.C. §§ 791, 794(c). The grant or denial of the request is within the sole discretion of the Court. Filing a request for an attorney does not extend your time in which to file a civil action. Both the request and the civil action

must be filed within the time limits as stated in the paragraph above ("Right to File a Civil Action").

FOR THE COMMISSION:

Stephen Llewellyn
Acting Executive Officer
Executive Secretariat

December 13, 2004

Date

CERTIFICATE OF MAILING

For timeliness purposes, the Commission will presume that this decision was received within five (5) calendar days after it was mailed. I certify that this decision was mailed to petitioner, petitioner's representative (if applicable), the agency, and the Merit Systems Protection Board on:

Date

Equal Opportunity Assistant

1The MSPB decision identifies petitioner's condition as epilepsy. Petitioner, however, identifies his condition as "seizure disorder," and specifically denies that he has epilepsy. Medical evidence of record also identifies petitioner's condition as "seizure disorder."

2The DOT regulations specifically exclude from coverage transportation performed by the Federal government. 49 C.F.R. § 390.3(f)(2).

3The record contains conflicting information with regard to when petitioner was first diagnosed with seizure disorder and when he first began to take anti-seizure medication.

4Subsequently, the medical officer noted that petitioner might in fact be disqualified from holding a CDL because he had experienced a myocardial infarction. The record reflects that petitioner experienced a myocardial infarction on November 11, 2000. However, the record further reflects that the medical officer had cleared petitioner for full duty, including driving, with no restrictions on December 29, 2000. Petitioner had no current diagnosis of any medical condition apart from seizure disorder at the time his qualification to hold a CDL was at issue.

5The record reflects that in order to obtain or renew a CDL, the driver must submit a certificate stating that he or she is qualified to operate a commercial motor vehicle as set forth in 49 C.F.R. Part 391.41.

6The DOT pertinent regulation contains no such limitation. The agency apparently referred to the medical advisory related to the regulation.

7It appears that at one point the agency's medical officer did attempt

an individualized assessment of the risk posed by petitioner, noting petitioner's stable medical condition, and his safe and satisfactory work record. The medical officer encouraged the agency to find some means of allowing petitioner to work in the Tractor-Trailer Operator craft, but there is no evidence of any effort to do so.